

The Trial of the Seven Bishops. 407

Ld. Ch. Just. Truly, Mr. Sollicitor, I am of Opinion, that the Bishops might *petition* the King, but this is not the right way of bringing it ; I am not of that Mind, that they cannot *petition* the King out of Parliament ; but if they may *petition*, yet they ought to have done it in another manner : For if they may in this reflective way *petition* the King, I am sure, it will make the Government very precarious.

Mr. Just. Powel. Mr. Sollicitor, it would have been too late to stay for a Parliament, for it was to have been distributed by such a Time.

Mr. Soll. Gen. They might have lain under it, and submitted.

Mr. Just. Powel. No, they would have run into Contempt of the King's Command, without *petitioning* the King not to insist upon it ; and if they had *petitioned*, and not have shewn the Reason why they could not obey, it would have been looked upon as a piece of Sullenness, and that they would have been blamed for, as much on the other Side.

Mr. Serj. Baldock. After so long a Debate, I shall not trouble you long, most Things that are to be said having been said, but I shall only say this in short ; I cannot deny, nor shall not, but that the Subject has a Right to *petition* ; but I shall affirm it also, he has a Duty to obey ; and that in this Case, the Power of the King to Dispense with Penal Laws in Matters Ecclesiastical, is not a thing that is